

		and Defendant would be prejudiced by allowing the amendment at this point in the proceedings. While it is true that leave to amend may be denied “where permitting an amendment would be futile” such as “where the amendment does not state a cause of action” (Singh v. Lipworth (2014) 227 Cal.App.4th 813, 828), “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (Kittredge Sports. Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; See also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2024) ¶6:644 [“Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion o strike are premature.”]) As to prejudice, trial is nearly eight months away. While Defendant expresses concern that the amendment will expand the scope of litigation and require additional discovery, these concerns are present in virtually every case in which leave to amend is granted. Further, in light of the narrow scope of the amendment and a significant amount of time left before trial, the minimal prejudice to the defendant does not override the policy favoring amendment. Plaintiff shall file and serve the proposed First Amended Complaint within 10 days. Plaintiff to give notice.
109	Cunningham vs. FCA US, LLC. 24-01431302	Motion for Bifurcation Defendant FCA US, LLC (“Defendant”) moves for an order bifurcating trial with regard to plaintiffs Dana Lynn Cunningham and Cara Leigh Cunningham’s (“Plaintiffs”) claim for punitive damages, precluding Plaintiffs from introducing evidence of or otherwise

		referring to Defendant’s financial condition unless and until Plaintiffs prove a prima facie case of liability for punitive damages, pursuant to Civil Code section 3295(d). Section 3295(d) provides, in relevant part: “The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294.” “[I]n practice bifurcation under this section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages.” (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919.) Pursuant to section 3295(d), Defendant’s Motion to Bifurcate is GRANTED. It is ORDERED that Plaintiffs shall be precluded from admitting evidence of Defendant’s financial condition in the first phase of trial and shall not introduce such evidence unless and until Plaintiffs have established a prima facie case of their entitlement to punitive damages. Moving party to give notice
110	Konkimalla vs. Bose 21-01221950	Motion to Strike or Tax Costs Plaintiff Harikrishna Madanaraj (“Plaintiff”) moves pursuant to Code of Civil Procedure sections 1032 and 1033.5 and California Rules of Court, rule 3.1700(b) to strike all costs on the grounds that the Court struck the provision awarding costs in its March 19, 2026 Order. Defendants SURBHI BOSE as special administrator, personal representative, and executor of the ESTATE